SCHOOL OF LAW
Faculty of Arts

MACQUARIE University

Topic 8: International Dispute Settlement

LAWS2000/8015 International Law

1. *The International Court of Justice (ICJ) has no so-called compulsory jurisdiction.*

   a. **Explain under what circumstances the ICJ has jurisdiction to settle an interstate dispute, including the ways in which states can consent to the Court's jurisdiction.**

   b. **Explain whether or not in the view of the ICJ its 'provisional measures' are binding.**

2. *State A is a small West African country. State B is a nation in the Pacific. State A initiated proceedings in the International Court of Justice against State B. State A alleged that State B had incarcerated disproportionate numbers of a minority group, forcibly displaced large parts of the group outside the country, and enabled the destruction of villages and sacred sites in contravention of the Convention on the Prevention and Punishment of the Crime of Genocide ('the Genocide Convention).*

   a. **Discuss the jurisdiction issues the ICJ will need to consider.**

   b. **What provisional measures could be considered?**

Extracts from the Genocide Convention

Article I

The Contracting Parties confirm that genocide, whether committed in time of peace or in time of war, is a crime under international law which they undertake to prevent and to punish.

Article II

In the present Convention, genocide means any of the following acts committed with intent to destroy, in whole or in part, a national, ethnical, racial or religions group, as such:

(a) Killing members of the group;

(b) Causing serious bodily or mental harm to members of the group;

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(c) Deliberately inflicting on the group conditions of life calculated to bring about its physical destruction in whole or in part;

(d) Imposing measures intended to prevent births within the group;

(e) Forcibly transferring children of the group to another group.

Article III The following acts shall be punishable:

(a) Genocide;

(b) Conspiracy to commit genocide;

(c) Direct and public incitement to commit genocide;

(d) Attempt to commit genocide;

(e) Complicity in genocide. ...

Article IX

Disputes between the Contracting Parties relating to the interpretation, application or fulfilment of the present Convention, including those relating to the responsibility of a State for genocide or for any of the other acts enumerated in Article III, shall be submitted to the International Court of Justice at the request of any of the parties to the dispute.